

Staffing and Delivery of Care

Protocols for Adequate and Safe Care Delivery

Regulation: 42 CFR §482.23(b) | §482.1(a)(5)

POLICY OVERVIEW

Adequate staffing is foundational to quality patient care and patient safety. Hospitals must have systems to ensure appropriate staffing levels at all times, match staff competencies to patient needs, and respond to changing census and acuity.

KEY REQUIREMENTS

1 Staffing Plan Development

A written staffing plan must be developed that considers: patient volume, patient acuity, unit layout, staff mix (RN, LPN, CNA), available support services, and national staffing benchmarks. The plan must be approved by nursing leadership.

2 Acuity-Based Staffing

Patient assignments must be based on acuity and complexity of care needs, not just census. A validated patient classification/acuity system should be used. High-acuity patients require more experienced nurses with lower patient-to-nurse ratios.

3 Charge Nurse Responsibilities

Charge nurses must monitor unit staffing throughout the shift and escalate staffing concerns to supervisors. They must ensure equitable patient assignments and support staff in managing high-acuity situations.

4 Float and Agency Utilization

Internal float pools should be utilized before external agency staff. Agency utilization should be minimized and tracked. Overtime must be managed to prevent staff fatigue-related errors.

5 Staffing Variance Documentation

When staffing falls below the approved plan, the variance must be documented including: the reason, the actual staffing, corrective actions taken, and impact on patient care. Patterns of understaffing must be escalated to administration.

COMPLIANCE NOTES

Several states have legislated minimum nurse-to-patient ratios. Regardless of state law, hospitals are responsible for ensuring staffing is sufficient to meet patient needs. Staffing data should be reviewed by quality committees and reported to the Governing Body.

COMMON SURVEY CITATIONS

Cited under §482.23(b) – Staffing and delivery of care, and §482.23(b)(4) – Adequate numbers of licensed RNs.